



CHAPTER 68.

An Act to amend the law with respect to customs in the Isle of Man. A.D. 1938.
[29th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this Act, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following table, by the respective enactments set out in the second column of that table, shall continue to be payable as from the first day of August, nineteen hundred and thirty-eight until the first day of August nineteen hundred and thirty-nine :—

Continua-
tion of
certain
annual
duties.

TABLE

Description of Goods.	Enactment imposing Duty.	
Ale and Beer - - -	Section 8 of the second Act of 1932 and section 4 of the Act of 1936.	22 & 23 Geo. 5. c. 41. 26 Geo. 5. & 1 Edw. 8. c. 45.
Cocoa - - - - -	Section 4 of the Act of 1924.	14 & 15 Geo. 5. c. 24.
Hops and extracts, essences and other similar preparations (other than hop oil) made from hops.	Section 5 of the Act of 1925.	15 & 16 Geo. 5. c. 56.

A.D. 1938.	Description of Goods,	Enactment imposing Duty.
20 & 21 Geo. 5. c. 1.	Hop oil - - - -	Section 3 of the Act of 1929.
23 & 24 Geo. 5. c. 40.	Matches - - - -	Section 1 of the Act of 1933.
16 & 17 Geo. 5. c. 27. 1 Edw. 8. & 1 Geo. 6. c. 64.	Silk and artificial silk and articles made wholly or in part of silk or artificial silk.	Section 7 of the Act of 1925, as amended by section 8 of the Act of 1926, section 9 of the second Act of 1932, section 4 of the Act of 1933, section 3 of the Act of 1936 and section 3 of the Act of 1937.
20 & 21 Geo. 5. c. 42.	Spirits - - - -	Section 2 of the Act of 1930.
	Sweets - - - -	Section 2 of the Act of 1929, as amended by section 3 of the Act of 1933.
22 & 23 Geo. 5. c. 16.	Tobacco - - - -	Section 19 of the first Act of 1932.
17 & 18 Geo. 5. c. 20.	Wines - - - -	Section 1 of the Act of 1927, as amended by section 8 of the Act of 1933.

(2) Where any enactment set out in the second column of the foregoing table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August nineteen hundred and thirty-nine, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act) which are for the time being in force.

Increase and
amendment
of duty on
hydro-
carbon oils.
21 & 22
Geo. 5. c. 34.

2.—(1) Both—

- (a) the rate of the customs duty payable on hydrocarbon oils under section four of the Act of 1930 (as amended by section one of the Act of 1931 and section twenty of the first Act of 1932); and

(b) the rate of the rebate to be allowed under subsection (2) of the said section four (as so amended) on the delivery for home consumption of any goods other than light oils; shall be increased from eightpence per gallon to ninepence per gallon. A.D. 1938. —

(2) Subsection (3) of the said section four (which provides for repayment of duty paid in respect of hydrocarbon oil used for fishing-boats) shall be amended as follows:—

- (a) an application may be made under the said subsection by the master instead of the owner of a fishing-boat;
- (b) a fishing-boat entered in the fishing-boat register shall be treated as a fishing-boat within the meaning of the said subsection if it is used for the purposes of fishing by any person gaining a substantial part of his livelihood by fishing, whether that person is the owner of the boat or not.

(3) Subsection (1) of this section shall be deemed to have had effect as from the fourth day of May nineteen hundred and thirty-eight.

3.—(1) Subject to the provisions of section two of the Customs (Isle of Man) Tariff Act, 1874 (which provides that no duty shall be chargeable on British goods upon which a duty of excise has been paid and not drawn back), a duty of customs of ninepence per gallon shall be payable on the removal or importation into the Isle of Man of spirits methylated in the United Kingdom in the manner prescribed for making power methylated spirits. Customs duty on power methylated spirits. 37 & 38 Vict. c. 46.

(2) In this section the expression “prescribed” means prescribed by regulations for the time being in force under section thirteen of the Finance Act, 1924 (which enables the Commissioners to prescribe what substances are to be mixed with spirits for the purposes of making power methylated spirits). 14 & 15 Geo. 5. c. 21.

(3) The foregoing provisions of this section shall be deemed to have had effect as from the first day of June nineteen hundred and thirty-eight.

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(4) Subsection (3) of section four of the Act of 1930, as amended by this Act, and subsection (2) of section twenty of the first Act of 1932 (which provide for repayment of duty paid in respect of hydrocarbon oil used for fishing-boats and lifeboats) shall be extended so as to apply to duty paid under this section as they apply to duty paid in respect of hydrocarbon oil.

Exemption
of British
methylated
spirits from
duty on
spirits.

4.—(1) No duty of customs shall be payable under section two of the Act of 1930 (which charges a duty on spirits) on the removal to the Isle of Man of spirits methylated in the United Kingdom.

(2) This section shall be deemed to have had effect as from the first day of June nineteen hundred and thirty-eight.

Increased
duties on
tea.

5.—(1) In lieu of the duties of customs payable under section one of the Act of 1936, there shall, until the first day of August nineteen hundred and thirty-nine, be payable on tea removed or imported into the Isle of Man duties of customs at the following increased rates, that is to say :—

Tea, not being an Empire product	- the lb. 8d.
Tea, being an Empire product	- the lb. 6d.

9 & 10
Geo. 5. c. 74.

(2) In this section the expression "Empire product" has the same meaning as in section five of the Act of 1919 as amended by any subsequent enactment.

(3) This section shall be deemed to have had effect as from the fourth day of May nineteen hundred and thirty-eight.

Duties on
motor cars,
clocks,
musical in-
struments,
films, &c.

6.—(1) On the removal or importation into the Isle of Man of goods of the descriptions set out in the First Schedule to this Act, there shall continue to be payable, as from the first day of August nineteen hundred and thirty-eight, until the appointed day, the duties of customs imposed by section six of the Act of 1925, as amended by the following enactments, that is to say, section six of the Act of 1926, sections eleven and twelve of the Act of 1927, section fourteen of the Act of 1928, section five of the Act of 1933, section four of the Act of 1935 and section two of the Act of 1937.

18 & 19
Geo. 5. c. 38.
25 & 26
Geo. 5. c. 34.

(2) For the purpose of subsection (1) of section two of the second Act of 1932 and subsection (1) of section

fourteen of the Act of 1933 (which enable the Governor to direct that, on the removal or importation into the Isle of Man of goods specified in an order made by the Treasury under section three of the Import Duties Act, 1932, there shall be payable such additional duties of customs as are equivalent to those specified in the Treasury order) any order made by the Treasury, directing that as from the appointed day additional duties shall be charged under the said section three on goods of any description set out in the First Schedule to this Act, shall be deemed to have been made under the said section three. A.D. 1938.
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22 & 23
Geo. 5. c. 8.

(3) Section three of the first Act of 1932 and section ten of the Act of 1933 (which exempt Empire goods from the general ad valorem duty and any additional duty), as amended by any subsequent enactment, shall not apply to goods of any description set out in the First Schedule to this Act, except goods produced or manufactured in the United Kingdom; but goods of any such description (except as aforesaid) which would, but for this subsection, be exempt from the general ad valorem duty and any additional duty by virtue of those sections as so amended, shall, as from the appointed day,—

- (a) be charged with those duties at the preferential rate of two-thirds of the aggregate full rate of those duties applicable to the goods; or
- (b) in the case of goods on which the general ad valorem duty alone is chargeable, be charged with that duty at the preferential rate of two-thirds of the full rate of that duty applicable to the goods:

Provided that the Governor may from time to time make such orders as may be necessary to provide—

- (i) that, so long as goods of any such description produced or manufactured in any country are, by virtue of any order made by the Treasury, exempt from duty on importation into the United Kingdom, goods of that description produced or manufactured in that country shall be exempt from duty on removal or importation into the Isle of Man; and

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(ii) that, so long as goods of any such description produced or manufactured in any country are, by virtue of any order made by the Treasury, chargeable with duty at a reduced preferential rate on importation into the United Kingdom, goods of that description produced or manufactured in that country shall be charged at a corresponding rate on removal or importation into the Isle of Man.

(4) Paragraph 4 of the Fourth Schedule to the Act of 1933 (which enables the Commissioners to require proof that any goods are, under the provisions of certain enactments, exempt from duty or chargeable with duty at a rate less than the full rate) shall have effect as if the words "under any enactment for the time being in force" were substituted for the words "under any provision of Part I of the first Act of 1932 or of Part I of the second Act of 1932 or of this Act".

(5) In this section the expression "the appointed day" means the twentieth day of August nineteen hundred and thirty-eight.

Provisions
as respects
imports
from Eire.

7.—(1) Subsection (3) of section ten of the Act of 1933, section ten of the Act of 1936 and section four of the Act of 1937 (which provide for the imposition of certain duties of customs in relation to Eire) shall cease to have effect and shall be deemed to have ceased to have had effect as from the first day of June nineteen hundred and thirty-eight.

1 & 2
Geo. 6. c. 25.

(2) If an order is made by the Treasury under subsection (4) of section three of the Eire (Confirmation of Agreements) Act, 1938, imposing duties of customs on eggs or poultry imported from Eire or exported from Eire to any other country and thence brought into the United Kingdom, the Governor may by order direct that in respect of goods of such classes and descriptions as are specified in the Treasury order, being goods so imported or brought into the Isle of Man, there shall be payable, subject to and in accordance with the Treasury order, such duties of customs as are specified in the Treasury order.

(3) Where an order made by the Treasury as aforesaid is varied or revoked, any corresponding order made

by the Governor under this section may be varied or
revoked accordingly by a subsequent order of the
Governor.

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8. Radium compounds (which, by virtue of an order made by the Governor under section thirteen of the Act of 1926 as amended by section fifteen of the Act of 1927, are exempt from the duty of customs chargeable under the said section thirteen until the first day of September nineteen hundred and thirty-eight) shall continue to be exempt from that duty on and after that date.

Continua-
tion of
exemption
of radium
compounds.

9.—(1) The Governor may make regulations providing for the exemption of the following goods, or any class or description thereof, from any duties of customs for the time being chargeable thereon, namely:—

Exemption
of vehicles,
vessels and
aircraft
temporarily
removed or
imported.

(a) any vehicle, vessel or aircraft removed or imported into the Isle of Man by a person making only a temporary stay therein, and exported within such period as the regulations may provide; and

(b) any accessories or component parts required for any such vehicle, vessel or aircraft.

(2) In this section the expression “vessel” includes a boat or other craft of any description.

(3) Different regulations may be made under this section as respects goods removed and goods imported respectively, as respects goods removed or imported by sea and by air respectively, and as respects vehicles, vessels and aircraft respectively.

10. Any order made by the Governor under subsection (3) of section one of the first Act of 1932 directing that there shall be added to the First Schedule to that Act any works of art to which section four of the Finance Act, 1937, applies, or any class or description thereof, may provide that no article shall be exempt from duty as being a work of art of a class or description to which the order relates unless it has been exempted from duty on importation into the United Kingdom by virtue of the provisions of the corresponding order made by the Treasury under subsection (3) of section one of the Import Duties Act, 1932, as amended by the said section four.

Provision as
to exemp-
tion of works
of art.

1 Edw. 8. &
1 Geo. 6.
c. 54.

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—
Amendment
as respects
preferential
duty on
silk
stockings
and socks.

11.—(1) If at any time an order is made by the Treasury under paragraph (d) of subsection (3) of section three of the Finance Act, 1937 (which relates to Imperial preference in respect of silk stockings and socks) directing that the operation of paragraphs (b) and (c) of that subsection shall be suspended, the Governor may by order direct that the operation of subsections (3) and (4) of section three of the Act of 1937 shall be suspended so long as the order made by the Treasury remains in force.

22 & 23
Geo. 5. c. 53.

(2) In relation to articles manufactured in any country the Government of which is a party to one of the agreements set out in the First Schedule to the Ottawa Agreements Act, 1932, as amended by any subsequent enactment, the provisions of subsections (3) and (4) of section three of the Act of 1937 shall not in any case have effect at any time when that agreement is not in force under the Ottawa Agreements Act, 1932, as so amended.

Short title
and repeals.

12.—(1) This Act may be cited as the *Isle of Man (Customs) Act, 1938.*

(2) The enactments set out in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule—

- (a) in the case of the enactment set out in Part I of that Schedule, as from the fourth day of May nineteen hundred and thirty-eight;
- (b) in the case of the enactments set out in Part II of that Schedule, as from the first day of June nineteen hundred and thirty-eight; and
- (c) in the case of the enactments set out in Part III of that Schedule, as from the twentieth day of August nineteen hundred and thirty-eight.

SCHEDULES.

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FIRST SCHEDULE.

Section 6.

GOODS TO WHICH SECTION SIX OF THIS ACT APPLIES.

Motor cars, including motor bicycles and motor tricycles.

Accessories and component parts of motor cars, motor bicycles and motor tricycles.

Musical instruments, including gramophones, pianolas and other similar instruments.

Accessories and component parts of musical instruments and records and other means of reproducing music.

Clocks, watches and component parts of clocks and watches.

Cinematograph films removed or imported for the purpose of the exhibition of pictures or other optical effects by means of a cinematograph or other similar apparatus.

SECOND SCHEDULE.

Section 12.

ENACTMENTS REPEALED.

PART I.

ENACTMENT REPEALED AS FROM 4TH MAY, 1938.

Session and Chapter.	Short Title.	Extent of Repeal.
26 Geo. 5. & 1 Edw. 8. c. 45.	The Isle of Man (Customs) Act, 1936.	Section one.

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PART II.

2ND SCH.
—cont.

ENACTMENTS REPEALED AS FROM 1ST JUNE, 1938.

Session and Chapter.	Short Title.	Extent of Repeal.
23 & 24 Geo. 5. c. 40.	The Isle of Man (Customs) Act, 1933.	Subsection (3) of section ten.
26 Geo. 5. & 1 Edw. 8. c. 45.	The Isle of Man (Customs) Act, 1936.	Section ten and the First Schedule.
1 Edw. 8. & 1 Geo. 6. c. 64.	The Isle of Man (Customs) Act, 1937.	Section four.

PART III.

ENACTMENTS REPEALED AS FROM 20TH AUGUST, 1938.

Session and Chapter.	Short Title.	Extent of Repeal.
15 & 16 Geo. 5. c. 56.	The Isle of Man (Customs) Act, 1925.	Section six and paragraph 3 of Part II of the Schedule.
16 & 17 Geo. 5. c. 27.	The Isle of Man (Customs) Act, 1926.	Section six.
17 & 18 Geo. 5. c. 20.	The Isle of Man (Customs) Act, 1927.	Sections eleven and twelve.
18 & 19 Geo. 5. c. 38.	The Isle of Man (Customs) Act, 1928.	The whole Act.
23 & 24 Geo. 5. c. 40.	The Isle of Man (Customs) Act, 1933.	Section five and the Second Schedule.
1 Edw. 8. & 1 Geo. 6. c. 64.	The Isle of Man (Customs) Act, 1937.	Section two.

Printed by EYRE AND SPOTTISWOODE LIMITED

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Acts of Parliament

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